

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

MARINE TRANSPORT LOGISTICS, INC., *Complainant*

v.

CMA-CGM (AMERICA) LLC, *Respondent*.

DOCKET NO. 18-07

Served: June 10, 2019

BEFORE: Erin M. WIRTH, *Administrative Law Judge*.

ORDER DENYING EXTENDED STAY

On August 23, 2018, Complainant Marine Transport Logistics, Inc. (“Marine Transport Logistics” or “MTL”) filed a complaint alleging violations of the Shipping Act. On September 5, 2018, the Commission issued a Notice of Filing of Complaint and Assignment, assigning the proceeding to the Office of Administrative Law Judges with instructions to issue an initial decision by September 6, 2019. Respondent CMA-CGM (America) LLC (“CMA”) filed its answer on September 26, 2018.

The parties have been working with the Commission’s Office of Consumer Affairs and Dispute Resolution Services (CADRS) and have filed multiple requests to stay the proceedings. While limited stays have been authorized, the parties have also been ordered to conduct discovery while continuing their settlement discussion. This discovery should have been completed by May 30, 2019.

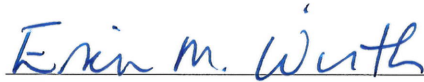
On June 6, 2019, a joint status report and joint motion for extended stay was filed. The parties indicate that they “remain engaged in active settlement discussions” but that “[g]iven the lack of progress in settlement negotiations, despite numerous attempts to reach a settlement that’s agreeable for both Parties,” CMA intends to file a motion to dismiss and Marine Transport Logistics will file a cross-motion to dismiss. Joint Status Report and Motion for Extended Stay.

This case has been pending for over nine months. The undersigned is concerned about the lack of progress and the impending September 6, 2019 deadline for issuing an initial decision. While parties are encouraged to resolve issues through settlement, the parties have been granted repeated extensions without success. At this point, they must finalize any discovery, file any motions, and prepare to present their cases in written briefs.

Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014, 46 U.S.C. § 41305(e), and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interests of all parties to proceed expeditiously.

While this proceeding was pending, the Commission issued a rule in Commission Docket No. 18-06¹ regarding the interpretation of the scope of 46 U.S.C. § 41102(c), one of the alleged violations in the complaint. The parties should review this rule prior to filing their motions to dismiss.

For the reasons discussed above and in prior orders, the parties' request for an extended stay is hereby **DENIED**. It is further **ORDERED** that Respondent shall file any motions, including a motion to dismiss, by July 10, 2019. Complainant shall file a response and any cross-motions by August 7, 2019. Respondent may file a reply to the motion to dismiss and response to any cross motions by August 22, 2019.



Erin M. Wirth
Administrative Law Judge

¹ Available on the Commission's docket log at www2.fmc.gov/readingroom/proceeding/18-06/.